

negro cannot testify in any case against a white man, so that the only way by which any conviction can be had in Kentucky in those cases is in the United States courts, because the United States courts enforce the United States laws by which negroes may testify.”⁹

But the purposes were much broader. The *third* aim was to provide a federal remedy where the state remedy, though adequate in theory, was not available in practice. The opposition to the measure complained that “It overrides the reserved powers of the States,”¹⁰ just as they argued that the second section of the bill “absorb[ed] the entire jurisdiction of the States over their local and domestic affairs.”¹¹

This Act of April 20, 1871, sometimes called “the third ‘force bill,’ ” was passed by a Congress that had the Klan “particularly in mind.”¹² The debates are replete with references to the lawless conditions existing in the South in 1871. There was available to the Congress during these debates a report, nearly 600 pages in length, dealing with the activities of the Klan and the inability of the state governments to cope with it.¹³ This report was drawn on by many of the speakers.¹⁴ It was not the unavailability of state remedies but the failure of certain States to enforce the laws with an equal hand that fur-

⁹ *Id.*, p. 345.

¹⁰ *Id.*, p. 365. The speaker, Mr. Arthur of Kentucky, had no doubts as to the scope of § 1: “[I]f the sheriff levy an execution, execute a writ, serve a summons, or make an arrest, all acting under a solemn, official oath, though as pure in duty as a saint and as immaculate as a seraph, for a mere error of judgment, [he is liable]” *Ibid.* (Italics added.)

¹¹ *Id.*, p. 366.

¹² Randall, *The Civil War and Reconstruction* (1937), p. 857.

¹³ S. Rep. No. 1, 42d Cong., 1st Sess.

¹⁴ See, e. g., Cong. Globe, 42d Cong., 1st Sess., App. 166-167.